ship, has the status of an independent contractor or (2) any individual (except an officer of a corporation) who is not an employee under such common-law rules. (Sec. 1426 (c), I. R. C., effective after March 31, 1939, and prior to Jan. 1, 1940, as amended, effective April 1, 1939, by sec. 1, P. L. 642, 80th Cong., enacted June 14, 1948)

Because this Treasury decision merely inserts the pertinent provisions of sections 1 and 2 of Public Law 642, 80th Congress, enacted June 14, 1948, in the appropriate places in the applicable regulations, it is hereby found that it is unnecessary to issue this Treasury decision with notice and public procedure thereon under section 4 (a) of the Administrative Procedure Act, approved June 11, 1946, or subject to the effective date limitation of section 4 (c) of said act.

(53 Stat. 178, 188, 467; secs. 808, 908, 49 Stat. 638, 643; secs. 1, 2 Pub. Law 642, 80th Cong.; 26 U. S. C. 1429, 1609, 3791, 42 U. S. C. 1008, 1108.)

GEO. J. SCHOENEMAN,
Commissioner of Internal Revenue.

Approved: September 7, 1948.

E. H. FOLEY, Jr.,
Acting Secretary of the Treasury.

[F. R. Doc. 48-8211; Filed, Sept. 13, 1948; 8:49 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 520]

ALASKA

REVOCATION OF PUBLIC LAND ORDER NO. 169 OF SEPTEMBER 21, 1943

By virtue of the authority vested in the President by section 1 of the act of June 4, 1897, 30 Stat. 11, 36 (U. S. C., title 16, sec. 473), and otherwise, and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Public Land Order No. 169 of September 21, 1943, reserving the public lands within the following-described area in Alaska for the use of the War Department for military purposes, is hereby revoked:

Beginning at the point of intersection of latitude 59°34' north, and 139°30' west.

From the initial point—

South, along the meridian to latitude 59°25' N.;

West, along the parallel of latitude to the 5 fathom line of the Gulf of Alaska;

Northwesterly, with the 5 fathom line around Ocean Cape to longitude 139°50' W., near Point Carrew on Monti Bay;

North, along the meridian to latitude 59°36' N.;

East, along the parallel of latitude to longitude 139°44' W.;

South, along the meridian to latitude 59°34' N.;

East, along the parallel of latitude to the point of beginning.

The area described aggregates 62,260 acres, more or less.

The lands are subject to (1) Proclamation No. 846 of February 16, 1909 (35 Stat. 2226), enlarging the Tongass National Forest; (2) the withdrawal for lighthouse purposes made by Executive Order No. 3406 of February 13, 1921, so far as such order affects lands at Point Carrew, Item No. 102, and at Ocean Cape, Item No. 103; and (3) the withdrawal for naval purposes made by Executive Order No. 5214 of October 30, 1929, so far as that order affects any of the lands in the above-described area.

This order shall become effective at 10:00 a. m. on November 5, 1948.

WILLIAM E. WARNE,
Assistant Secretary of the Interior.

SEPTEMBER 3, 1948.

[F. R. Doc. 48-8192; Filed, Sept. 13, 1948; 8:46 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Production and Marketing Administration

[7 CFR, Part 903]

[Docket No. AO 10-A 12]

HANDLING OF MILK IN ST. LOUIS, MO., MILK MARKETING AREA

NOTICE OF HEARING ON PROPOSED AMENDMENTS TO TENTATIVE MARKETING AGREEMENT AND TO ORDER, AS AMENDED

Pursuant to the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and in accordance with the applicable rules of practice and procedure, as amended (7 CFR, Supps., 900.1 et seq.), notice is hereby given of a public hearing to be held in the Chase Hotel, at St. Louis, Missouri, beginning at 10: 30 a. m., c. d. t., on September 20, 1948, for the purpose of receiving evidence with respect to the proposed amendments, hereinafter set forth, or appropriate modifications thereof, to the tentative marketing agreement and to the order, as amended, regulating the handling of milk in the St. Louis, Missouri, milk marketing area. The proposals to define various types of plants, to revise the classification of milk transferred between various plants, and to adopt a market-wide pool in lieu of an individual-handler pool raise the question as to whether an adjustment should be made in the location differentials to handlers and producers. Similarly, the proposals to revise the definition of Class I milk by including skim milk, buttermilk, and flavored milk drinks; to revise the method of allocating receipts of milk, skim milk, and cream from sources other than producers and handlers in the classification of producer milk; and to provide a butterfat differential to handlers raise the question whether the adoption of any of said proposals would necessitate a change in the method of accounting and pricing of skim milk and butterfat. Evidence with respect to these questions will also be received at the hearing. These proposed amendments have not received the approval of the Secretary of Agriculture.

The following amendments have been proposed:

By Sanitary Milk Producers:

1. Delete the provisions of § 903.1 (b) and substitute therefor the following:

(b) "Secretary" means the Secretary of Agriculture or such other officer or employee of the United States authorized to exercise the powers or to perform the duties of the said Secretary of Agriculture.

2. Delete the provisions of § 903.1 (e) and substitute therefor the following:

(e) "Producer" means any person, except a producer-handler, who produces, under a dairy farm permit or rating issued by the proper health authorities in the "marketing area" for production of Grade A or Grade B raw milk, milk which is received at a city plant or at a country plant. As used herein, such "dairy farm permit or rating" means one issued by any of the health authorities duly authorized to administer regulations governing the quality of milk disposed of in the area.

3. Delete the provisions of § 903.1 (f) and substitute therefor the following:

(f) "Handler" means any person who, on his own behalf or on behalf of others, receives milk from producers, associations of producers or other handlers at a city plant, or at a country plant.

By the Dairy Branch, Production and Marketing Administration:

4. Delete the provisions of § 903.1 (h) and substitute therefor the following:

(h) "Delivery period" means a calender month, or the portion thereof during which this order is in effect.

By the Sanitary Milk Producers:

5. Add as § 903.1 (j) the following:

(j) "City plant" means a milk plant, operated by a person, from which packaged fluid milk is disposed of in the marketing area.

6. Add as § 903.1 (k) the following:

(k) "Country plant" means a milk plant, operated by a person from which milk of producers eligible for distribution as packaged fluid milk in the marketing area, is disposed of to a city plant.

7. Add as § 903.1 (l) the following:

(l) "Producer-handler" means any person who produces milk and operates a